The Kansas-Nebraska Act

U.S. Congress (drafted by Sen. Stephen A. Douglas) · May 30, 1854

Source: Kansas-Nebraska Act (May 30, 1854), text via the U.S. National Archives, Milestone Documents. Public domain.

Written by Senator Stephen Douglas to organize the Nebraska and Kansas territories — and to clear a path for a transcontinental railroad — the act let settlers decide the slavery question by "popular sovereignty." Because it repealed the Missouri Compromise line of 1820, it reopened the fight over slavery in the territories, triggered "Bleeding Kansas," shattered the party system, and hastened the birth of the Republican Party and the coming of the Civil War.

Connect: Why did applying "popular sovereignty" to Kansas and Nebraska prove so much more explosive than its supporters expected?

Key Passages

Admission with or without slavery

created into a temporary government by the name of the Territory of Kansas; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as their Constitution may prescribe at the time of their admission

Repeal of the Missouri Compromise

except the eighth section of the act preparatory to the admission of Missouri into the Union, approved March sixth, eighteen hundred and twenty … being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void

Popular sovereignty

it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Sectional tension after the Compromise of 1850, plus Douglas's push to organize the Nebraska Territory for a transcontinental railroad through the central route.
Intended Audience *Who was the source written for?*	Congress and the settlers of the new Kansas and Nebraska territories, along with Northern and Southern voters watching the slavery question.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Senator Stephen A. Douglas, an Illinois Democrat who favored popular sovereignty and needed Southern votes; abolitionists and enslaved people had no voice in it.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ practice (A·C·E): Explain ONE effect of the Kansas-Nebraska Act on sectional tensions.
2. How did “popular sovereignty” differ from the way the Missouri Compromise had handled slavery in the territories?
3. Why did this act accelerate the collapse of the Second Party System and the rise of the Republicans?